EU AI Act Article 6 +Annex III : Compliance of High-Risk Systems

An AI system is high risk if:

- It is a safety component of a regulated product
- It falls under specific use cases listed in Annex III

These are AI systems embedded in products already subject to EU safety laws.

1. Examples Of Regulated Products:

- Medical devices (AI diagnostics tools)
- Vehicles (autonomous driving systems)
- Machinery (industrial robots)
- Aviation systems

Key Point:
If the product requires third-party conformity assessment, the AI is automatically high-risk.

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2. High-Risk Use Cases (Annex III Categories)

These are standalone AI systems with significant societal impact.

AI Systems	Use Cases	Risk
Remote Biometric ID Biometric Categorization	Non-prohibited Ethnicity, Gender Inference	Privacy, Surveillance, Discrimination
Critical Infra: AI managing or Operating Essential Services	Energy grids, Water supply, Traffic systems	Safety, Service Disruption
Education/Vocational Training	Grading exams, Determining access to education	Bias, Unfair outcomes
Employment, Access to Self-Employment	CV screening tools, Hiring decision systems, Employee monitoring/ Performance evaluation	Discrimination, Worker rights
Access to essential services (Public & Private)	Credit scoring systems, Welfare eligibility, Insurance risk assessment	Financial exclusion, Inequality
Law Enforcement	Predictive policing tools, Risk assessment of Individuals, Crime analytics systems	Bias, Civil liberties

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Migration, Asylum & Border Control	Visa Application risk scoring, Border control biometrics systems	Human rights violations
Admin of Justice & Democratic Processes	AI supporting judicial decisions, Influencing voting or political processes	Rule of law, Democracy integrity

If your system falls under High-Risk categories, that materially influence decision-making or acts as a support tool without human override

you must implement:

Under ISO/AI governance (e.g. ISO/IEC 42001):

- Risk management system
- Data governance controls
- Human oversight
- Logging & traceability
- Conformity assessment readiness

Under risk frameworks (e.g. NIST AI RMF):

- **Govern** → Policies & accountability
- **Map** → Context + impact
- **Measure** → Bias, accuracy, robustness
- **Manage** → Continuous monitoring

If it affects people's rights, access, or safety at scale and meaningfully influences decisions, it's high-risk until proven otherwise.

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